

**STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT FOR MUSKEGON COUNTY**

**Case No.: 2025-0000002760-CZ
Hon. Kenneth S. Hoopes**

ANDREW J. PIGORS,
Plaintiff, in pro per
1977 Whitehall Rd, Lot 17
Muskegon, MI 49445
(231) 903-5690

v.

**SHADY OAKS MHP LLC,
HOMES OF AMERICA LLC,
ALDAN GLOBAL CAPITAL LLC,**
Defendants.

____/

**MOTION TO SET EVIDENTIARY HEARING ON PRELIMINARY INJUNCTION
AND FOR ENTRY OF IMMEDIATE PROTECTIVE RELIEF**

NOW COMES Plaintiff, ANDREW J. PIGORS, in pro per, pursuant to **MCR 3.310(A)(2)** and **MCR 2.119(A)(1)(b)**, and respectfully moves this Court to set an evidentiary hearing to determine whether a Preliminary Injunction should issue, and to impose immediate protective relief pending that hearing. In support of this Motion, Plaintiff states:

1. Plaintiff has filed a Verified Complaint alleging;
2. Ongoing irreparable harm due to coercive rent increases and fabricated billing;
3. Environmental violations confirmed by EGLE that endanger Plaintiff and his minor child;
4. Entity misconduct, including the use of a legally forfeited LLC to collect money and execute eviction;
5. Forged or misapplied payments, including checks from public benefit programs and third parties;
6. Continuing interference with housing stability and health in violation of Michigan public policy.
7. Plaintiff's prior Ex Parte Motion for Temporary Restraining Order was denied on June 18, 2025, but the Court did not address the pending request for Preliminary Injunction.
8. Under **MCR 3.310(A)(2)**, the Court must hold an evidentiary hearing before granting or denying preliminary injunctive relief unless there is no factual dispute. Plaintiff asserts multiple disputed facts, each supported by authenticated exhibits and sworn affidavits.
9. Plaintiff incorporates and attaches:

10. Exhibit A: Utility bills demonstrating falsified sewer charges from hose usage;
 11. Exhibit B: LARA certificate showing Shady Oaks MHP LLC was forfeited on 01/21/2024;
 12. Exhibit C: EGLE violation VN-017235 notice and photos;
 13. Exhibit D: Move-in letter and lease history (rent \$335/month);
 14. Exhibit E: Karen Rettig and True North payment records;
 15. Exhibit F: Affidavit of Truth under MCL 565.451a.
16. Plaintiff further requests that the Court grant immediate protective relief restraining Defendants from:
17. Pursuing eviction, removing Plaintiff from Lot 17, or terminating utilities;
 18. Increasing rent or utility charges;
 19. Transferring or altering entity ownership during the pendency of this case.

WHEREFORE, Plaintiff respectfully requests that this Court:

- A. Schedule an **evidentiary hearing pursuant to MCR 3.310(A)(2)** on the issue of preliminary injunctive relief;
- B. Grant **interim protective orders** maintaining the status quo pending the outcome of that hearing;
- C. Issue any other relief deemed just and necessary to preserve Plaintiff's rights and prevent further irreparable harm.

Respectfully submitted,

/s/ Andrew J. Pigors

Andrew J. Pigors, Plaintiff, In Pro Per

Dated: June 26, 2025